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Iraq: Anbar Displaced Barred from Going Home



An Iraqi displaced woman, who fled from ISIS violence in Anbar, carries her child at a camp for displaced families camp in Amiriyat al-Fallujah, July 25, 2015. © 2015 Reuters

(Beirut) – [Iraqi](#) security officials are preventing displaced families from returning home to retaken areas over perceived ties to the Islamic State (also known as ISIS), Human Rights Watch said today. Iraqi authorities also are evicting other families in an attempt to force them back to their homes, even when these families fear their home areas will be unsafe or their homes were destroyed by fighting.

The concerns about Anbar authorities' treatment of displaced people are heightened because of [new military operations](#) beginning October 26, 2017, to retake the areas in western Anbar still under the

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linked to ISIS or having lived under ISIS is not enough to represent a real threat,” said [Sarah Leah Whitson](#), Middle East director at Human Rights Watch. “Authorities should allow those who aren’t an actual security risk who want to go home to do so in peace and respect the right of people who don’t feel safe to live where they wish.

In mid-2016, Iraqi forces battled ISIS in and around the city of Fallujah, 50 kilometers west of Baghdad in Anbar province. Over the past month, Iraqi forces have continued to push toward Qa’im and Rawa in western Anbar along the border with Syria, the last towns in Iraq still under ISIS control. Fighting in Anbar has [displaced at least 507,000](#) people since 2014, with at least 91,000 still in camps, according to the International Organization for Migration’s Displacement Tracking Matrix.

Most of the displaced have ended up in one of five main camps. Others are restricted to an area of formal and informal settlements, partially due to [restrictions](#) on staying [outside camps](#) that have increased with the newer arrivals from western Anbar, said two experts who monitor treatment of internally displaced people in Anbar and who requested anonymity. In early July, about 5,000 families were stuck at Suqur checkpoint, the main checkpoint between Anbar and Baghdad, for up to 12 days, with security forces unwilling to provide a plausible explanation.

Since March, Anbar’s Provincial Council has been encouraging districts in Anbar to forcibly [return displaced families](#) to areas retaken by Iraqi forces. On March 22 the Anbar Provincial Council issued a notice ordering authorities in the towns of Khaldiya and Amiriyat al-Fallujah to forcibly return all families whose homes were not completely destroyed by the fighting, citing limits in camp space.

Many armed forces are inside the main camps in western Anbar, including Iraqi Security Forces, Popular Mobilization Forces (known as the PMF or Hashd al-Sha’abi), Interior Ministry Intelligence agents, and local police. The experts said that procedures differ based on where residents are from.

In most cases, forces under the Anbar Operation Command carry out an initial screening of people who want to return home, including running the names of all men and boys over 15 through a database of those wanted for ISIS affiliation at Suqur checkpoint. If they pass, local Interior Ministry emergency forces carry out their own screening. In some areas, local PMF units made up of tribal forces carry out a third screening before greenlighting their return home.

According to the two experts and a United Nations High Commissioner for Refugees [report](#), Iraqi security forces regard most civilians who have remained in the towns of Rawa and Qa’im to be “ISIS-affiliated.”

On October 8, Human Rights Watch researchers interviewed nine men and one woman displaced with their families in the Amiriyat al-Fallujah and Habbaniya Tourist City (HTC) camps. Six said

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Three of them said they told the soldiers they had relatives who had joined ISIS and did not feel safe returning. Another man from Thera Dejla, northeast of Fallujah said he told soldiers he was afraid to go home for that same reason. They all said they knew they would be returned from the Suqur checkpoint because local security forces had told them their names were on wanted lists.

One man said that his family boarded trucks with about 45 other families, but that his family and two others were stopped at Suqur checkpoint and sent back to the camp. He said his name was on the list because his brother had joined ISIS, and that one of the other families admitted to him that their daughter had joined ISIS.

The remaining three men said they were also afraid to return home, though two had security clearances. These two men were from Saqlawiya, a village northwest of Fallujah, where on June 3, 2016, Iraqi forces including PMF units [rounded up more than 1,200 men](#) from the Mahamda community, torturing and then releasing 600, but [disappearing another 643](#).

They said some of the forces who had been part of the roundups were now in control of the security in the village. The other man was from Karma, a town northeast of Fallujah where in early June 2016 Iraqi forces including PMF units [detained and disappeared](#) at least 70 men. He was worried that PMF forces now in control would take revenge on returnees.

Camp residents said that following the March announcement, families would be required to return home, PMF units arrived at the camp and confiscated identity cards of at least 60 families, saying they would get the cards back if they returned home. The families said they were afraid to return, citing security concerns, or saying that their houses had been partially destroyed in the fighting and were no longer habitable. By the end of March, Amiriyat al-Fallujah's local council had taken steps to carry out the eviction notice in camps in the area, including Amiriyat al-Fallujah camp, targeting about 3,500 families. Evictions have [continued](#) throughout the year.

Three of the men and the woman interviewed said Iraqi forces had detained or disappeared their relatives for alleged ISIS ties at camps or checkpoints between June 2016 and May 2017. Two had not been able to find out where their relatives were. Human Rights Watch has documented the enforced [disappearance](#) and [arbitrary detention](#) of [thousands](#) of men allegedly on ISIS-affiliation grounds over the last year.

“Ammar” from Saqlawiya said that in October 2016, his son who was displaced with him at HTC camp joined the Iraqi Army's 14th division. On May 1, his son later told him, he was detained while manning a checkpoint in Anbar. He said his son told him that fighters from the PMF unit Ali al-Akbar Brigade (Liwa Ali al-Akbar) detained and held him at an unknown location for 35 days, interrogating him and accusing him of ISIS affiliation. Ammar said one of his relatives later

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After 35 days, the son said, he was handed over to Fallujah's local police, where he was held in a local police prison and Ammar was able to visit him. On September 24, a local judge ordered his release without charge, but by the time of the interview he had not been released, Ammar said.

The authorities should immediately facilitate the return of families who want to return to areas not affected by ongoing military operations and allow families who do not feel they can currently return home in safety to stay where they are currently living (including in camps that allow for free movement and communications) if they choose, or to relocate elsewhere. If authorities cannot ensure families' safety because of the threat of revenge attacks, they should allow families to relocate to camps or other areas where authorities can provide adequate protection.

Authorities should inform family members of the whereabouts of all detainees and make public the number of fighters and civilians detained, including at checkpoints, screening sites, and camps during the conflict with ISIS, and the legal basis for their detention, including the charges against them.

"With a new wave of displaced people most likely on the horizon, authorities should ensure that they are able to return to their homes when they feel safe," Whitson said.

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